

		Plaintiff deposed Lake on July 31, 2023, November 6, 2023 and February 27, 2024. "[A] natural person may be deposed only once during the run of the litigation." <i>Fairmont Ins. Co. v. Superior Court</i> (2000) 22 Cal.4th 245, 254; <i>see also McCoy v. Gustafson</i> (2009) 180 Cal.App.4th 56, 97 ("The statute prohibits taking a subsequent deposition of a person (§ 2025.610, subd. (a)), unless the parties and the deponent agree to one or the court grants leave to take a subsequent deposition 'for good cause shown.'"). Plaintiff argues she should be permitted to take a fourth deposition of Lake because Lake made statements in a December 27, 2023 declaration that allegedly contradict her earlier deposition testimony, and because Lake verified a "revised" interrogatory response that allegedly changed a prior interrogatory response served by defendant Diamond ZB Staffing. Plaintiff also argues she should be permitted to take a fourth deposition of Lake to question Lake about various allegations in the second amended complaint. None of these reasons warrants a fourth deposition of Lake. That Lake provided allegedly contradictory testimony at her deposition and in a declaration, and/or verified a discovery response that allegedly contradicts a prior response, may warrant use of the deposition testimony or the documents to impeach Lake at trial; it does not warrant a fourth deposition. As to a further deposition to address the second amended complaint, none of the allegations in the second amended complaint to which plaintiff points are sufficiently different from plaintiff's other, long-pending allegations and theories so as to justify a fourth deposition. Plaintiff's and defendant's requests for sanctions are denied. Defendant Veronica G. Lake to give notice.
10	Stickney v. State Farm General Insurance Company 2021-01231896	<u>Defendant State Farm General Insurance Company's Motion to Seal Trial Exhibit 80, Trial Exhibit 81 and Exhibit 3 to Plaintiffs' February 27, 2024 Ex Parte Application</u> Defendant State Farm General Insurance Company moves to seal Trial Exhibit 80, Trial Exhibit 81 and Exhibit 3 to plaintiffs James Stickney and April Stickney's February 27, 2024 ex parte application. Exhibit 3 contains four pages: three powerpoint slides and a one-page meeting agenda. Trial Exhibit 80 is the meeting agenda. Trial Exhibit 81 is the three powerpoint slides. The court already ordered the three powerpoint slides sealed when it granted in part defendant's previous motion to seal them. ROA 265. The court denied without prejudice defendant's previous motion to seal the meeting agenda, i.e., the fourth page of Exhibit 3 to plaintiffs' February 27, 2024 ex parte application. ROA 265. For the following reasons, defendant's motion to seal Trial Exhibit 81 is denied as moot, and defendant's motion to seal the meeting agenda, i.e., Trial

		Exhibit 80 and the fourth page of Exhibit 3 to plaintiffs' February 27, 2024 ex parte application, is denied. Unless confidentiality is required by law, court records are presumed to be open. Cal. R. Ct. 2.550(c). A record must not be filed under seal without a court order. Cal. R. Ct. 2.551(a). The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties. <i>Id.</i> A party requesting that a court record be filed under seal "must file a motion or an application for an order sealing the record." Cal. R. Ct. 2.551(b)(1). "The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing." <i>Id.</i> A court may order a record be filed under seal only if the court expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. Cal. R. Ct. 2.550(d). An order sealing a record must specifically state the facts that support the findings, and direct the sealing of only those documents and pages, or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be placed under seal. Cal. R. Ct. 2.550(e)(1). All other portions of each document or page must be included in the public file. <i>Id.</i> As noted, the court has already sealed the three powerpoint slides that constitute Trial Exhibit 81. Defendant's motion to seal Trial Exhibit 81 is therefore denied as moot. Trial Exhibit 81 is already sealed because the documents identified as Trial Exhibit 81 have already been ordered sealed. Defendant has not demonstrated that the meeting agenda should be sealed. The general statements about the agenda in the Rice Declaration (ROA 587, ¶ 13) do not state facts sufficient to justify the sealing nor do they accurately describe the document. Moreover, defendant's proposed sealing is not narrowly tailored, e.g., defendant does not explain why phrases such as "welcome," "introductions," "break" and "dismiss for lunch" should be sealed. Defendant's motion to seal the meeting agenda, i.e., Trial Exhibit 81 and the fourth page of Exhibit 3 to plaintiffs' February 27, 2024 ex parte application, is denied. Plaintiffs to give notice.
11	Still Protecting Our Newport v. City of Newport Beach	Off calendar.

	2024-01421781	
12	Watson v. Notarize, Inc. 2023-01310277	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$182,500 class action and PAGA settlement. Subject to plaintiff's submission of the documents (including the revised notice) discussed below, the court grants the motion as follows: \$10,000.00 for plaintiff's enhancement payment (not to exceed); \$60,833.33 for attorneys' fees (not to exceed to 1/3 of gross settlement amount); \$15,000.00 for litigation costs (not to exceed); \$5,000.00 for settlement administration costs (not to exceed); and \$20,000.00 total PAGA penalties (\$15,00.00 to LWDA). The court has the following comments: 1. In its July 23, 2024 order (ROA 75), the court instructed the parties to remove the word "strongly" from the past paragraph on page 3 of the notice. 7/23/24 Order (ROA 75) ¶ 17; see also 12/5/24 Order (ROA 87) ¶ 8. The parties appear to have removed the word "strongly" from a different part of the notice, not from the last paragraph on page 3 of the notice. Plaintiff is ordered to file and serve by <u>April 24, 2025</u> a copy of the proposed order with all exhibits attached, including a copy of the settlement agreement, any amendments thereto, and a revised notice (as discussed above). Only one copy of the notice should be attached as an exhibit to the proposed order; duplicate copies should not be attached. The final approval hearing is scheduled for <u>September 11, 2025 at 2:00 p.m.</u> in Department CX104. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX104 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.